



CHAPTER lxxxii.

An Act to confer further powers on the Marple Urban District Council with regard to their gas undertaking and for other purposes. A.D. 1911.
 [18th August 1911.]

WHEREAS the urban district of Marple in the county of Chester is under the local government of the Marple Urban District Council (in this Act called "the Council"):

And whereas by the Marple Local Board Gas Act 1886 the undertaking of the Marple Gas Company Limited was transferred to the Marple Local Board the predecessors of the Council:

And whereas it is expedient that the gasworks of the Council should be extended and that the Council should be empowered to purchase the lands hereinafter referred to:

And whereas it is expedient to make such other provision as this Act contains:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For the purchase of land - - - - -	950
For the extension and improvement of the gas undertaking of the Council and the construction of the weighbridge authorised by this Act -	4700
For working capital for the gas undertaking of the Council - - - - -	500
[Price 1s. 6d.] A	1

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And whereas the several works included in such estimates are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the Council at a meeting held on the fifth day of December one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Cheshire Daily Echo* a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the third day of January one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

And whereas a plan of the lands which may be taken for the purposes or under the powers of this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of Derby and are in this Act respectively referred to as "the deposited plan and book of reference" :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the *Marple Urban District Council Gas Act-1911.*

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2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely):--

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Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845);

The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers) Provided that section 13 of that Act shall be read as if the words "or any premises" were inserted after the words "private building"; and

The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof).

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

Interpretation.

"The district" means the urban district of Marple;

"The Council" means the Marple Urban District Council;

"The district fund" and "the general district rate" mean respectively the district fund and the general district rate of the district;

"Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on

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loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any provisional order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“The Act of 1886” means the Marple Local Board Gas Act 1886.

Words and expressions to which meanings are assigned by the Public Health Acts have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

Powers as to purchase of lands and construction and maintenance of gas-works.

4. The Council may enter upon purchase take and hold the lands described in the first part of the schedule to this Act upon which their existing gasworks are situate and also the lands described in the second part of the said schedule all of which lands are shown on the deposited plan as lands intended to be taken and after such purchase or taking the Council may upon such lands or upon any part thereof continue erect lay down provide maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp posts burners stop cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of the Council for the supply of gas and may make store and supply gas accordingly and may convert manufacture provide and deal in coke tar pitch asphaltum ammoniacal liquor oil sulphate of ammonia and all other products or residuum of any materials employed in or resulting from the manufacture of gas and any matters producible therefrom and may sell and dispose of the same at the gasworks and elsewhere.

Period for compulsory purchase of lands.

5. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

6. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Derby for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Derby and a duplicate thereof shall also be deposited with the clerk to the Ludworth Parish Council and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

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Correction of errors &c. in deposited plan and book of reference.

7. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

8. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under

Power to retain sell &c. lands.

A.D. 1911. this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of
sale of sur-
plus lands.

9. So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing in pursuance of the powers of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board Provided that—

(1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase:

(2) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Power to
purchase
lands by
agreement.

10. In addition to the lands now held by the Council and any other lands which they may acquire or hold under the powers of the Act of 1886 or of this Act they may for the purposes of their gas undertaking purchase take and hold (by agreement but not otherwise) any lands and hereditaments not exceeding in the whole two acres which the Council may require for the purposes of their works and gas undertaking but the Council shall not create or permit a nuisance on any such lands and no lands shall be used by the Council for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

11. The Council may erect fit up maintain and let upon the lands for the time being belonging to or leased by them for the purposes of the undertaking dwelling-houses for persons employed by them for the purposes of the undertaking.

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Dwelling-houses for persons in employ of Council.

12.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be the testing place provided by the Council at their works.

Testing place and testing for quality.

(2) The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(3) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Council approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(4) The Council shall within three months after the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

(5) Section 41 (Quality of gas) and section 43 (Testing place) of the Act of 1886 are hereby repealed.

13.—(1) The Council may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

Power to supply gas fittings &c.

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(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof.

(3) Provided as follows:—

(a) It shall not be lawful for the Council to expend money (except through a contractor) upon the provision of such fittings or of labour and materials required for the fixing repairing or removal thereof upon or from the premises of their consumers or prospective consumers:

(b) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(c) Every sum charged by the Council in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer:

(d) The total sums expended and received by the Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the gas undertaking of the Council for that year.

Power to lay
pipes in
streets not
dedicated to
public use.

14.—(1) The Council may on the application of the owner or occupier of any premises within the limits of the Council for the supply of gas abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply:

Provided that nothing in this section contained shall authorise the Council to lay pipes in any street or roadway belonging to or maintained by the Midland Railway Company or the Great Central and Midland Joint Committee or across any bridge carrying a street or roadway not dedicated to public use over or under the Midland Railway or over or under a railway of the said joint committee without the consent in writing of that company or joint committee as the case may be under their common seal. A.D. 1911.

(2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

15. The following provisions shall be in force and have effect for the protection of the mayor aldermen and burgesses of the county borough of Stockport (in this section referred to as "the Stockport Corporation") unless otherwise agreed between the Council and the Stockport Corporation:— For protection of Stockport Corporation.

(1) Any mains pipes or other works which the Council may lay down or execute under or over any water mains or pipes or other waterworks of the Stockport Corporation shall be laid down and executed and subsequently maintained and repaired by the Council under the direction and superintendence (if the same be given) and to the reasonable satisfaction of the water engineer for the time being of the Stockport Corporation and in accordance with plans and sections previously submitted to and reasonably approved by him. Provided that if for one month after any such plans and sections have been submitted to the said engineer he shall fail to give notice to the Council specifying his objections thereto he shall be deemed to have approved thereof:

(2) If any question shall arise as to whether any works should reasonably satisfy the Stockport Corporation or their engineer or as to whether their or his approval is unreasonably withheld or otherwise under this section the same shall be determined by arbitration the arbitrator being appointed in default of

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agreement by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of Hay-
field Rural
District
Council.

16. For the protection of the rural district council of Hayfield in the county of Derby (in this section referred to as "the Hayfield Council") the following provisions shall unless otherwise agreed in writing between the Council and the Hayfield Council apply to the execution of the works and exercise of the powers by this Act respectively authorised so far as the same affect district roads streets passages or public highways (not being main roads) within the township or parish of Mellor which are under the control or management of the Hayfield Council:—

- (1) All mains pipes conduits and works to be laid in or along any such streets roads or passages shall be laid in such position as the Hayfield Council in writing under the hand of their surveyor may reasonably direct provided nevertheless that in the event of the Council renewing or replacing any existing mains or pipes by new mains or new pipes such new mains or new pipes shall wherever practicable be laid in the same position and at the same depth as the existing mains or pipes which may be so renewed or replaced accordingly :
- (2) Section 8 of the Gasworks Clauses Act 1847 incorporated with this Act shall be read and have effect as if the period of seven clear days were inserted therein instead of the period of three clear days in the said section mentioned :
- (3) The plan required by section 9 of the Gasworks Clauses Act 1847 shall be delivered (except in cases of emergency) to the Hayfield Council by the Council not less than seven days before the Council commence to open or break up or interfere with any street road passage or other property of the Hayfield Council for the purpose of executing the works :
- (4) Nothing in this Act contained shall interfere with the right of the Hayfield Council at any time or times in any manner they may think fit to repair improve alter raise or lower any street road or passage over or near to which any pipes or other works of the

Council are carried The Council shall not open or break up at any one time a greater length than one hundred yards of any such street road or passage where their works do not leave sufficient space for two carts to pass: A.D. 1911.

- (5) If any difference arise between the Council and the Hayfield Council with reference to the provisions of this section or in any way arising thereout the same shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the Board of Trade on the application of the Hayfield Council and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

17.—(1) In the event of an agreement being entered into between the Council and the parish council of Mellor the parish council of Chisworth or the parish council of Ludworth under section 24 of the Gasworks Clauses Act 1871 for a supply of gas to any public lamps within the parishes of Mellor Chisworth or Ludworth respectively in the county of Derby the price to be charged by the Council for such supply of gas shall be the same as the price charged for public lighting in the district. Price of gas in Mellor Chisworth and Ludworth.

(2) During the period of ten years after the passing of this Act the price to be charged for the supply of gas to private consumers in the parishes of Mellor Chisworth and Ludworth shall not exceed the price charged for a similar supply in the district by more than twopence per one thousand cubic feet of gas and at the expiration of that period the price to be charged to private consumers in the said parishes shall be the same as that charged to private consumers in the district.

18.—(1) At least twenty-four hours' notice in writing shall be given to the Council by every gas consumer before he shall quit any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur. Gas consumers to give notice to Council before removing.

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(2) Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Council.

Notice to
discontinue
supply of
gas.

19. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Power to re-
fuse supply
to persons in
debt for other
premises.

20. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas is being or has been supplied to him by the Council and has not paid all money due from him to the Council for the supply of gas or for the rent of a meter they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in de-
fective
meters.

21.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Council.

Anti-fluctua-
tors for gas
engines.

22.—(1) Every consumer of gas supplied by the Council who uses a gas engine shall if required to do so by the Council use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Council may cease to supply him with gas.

(2) The Council shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Charge for
gas supplied
by means of
prepayment
meters.

23.—(1) The Council may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of the Council

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for the supply of gas through any other kind of meter or by any other method of supply. A.D. 1911.

(2) The Council shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Council in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

24. In order to enable the Council to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

(1) The Council may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal on the consumer's premises between the Council's mains and the meter so far as such pipes and fittings are intended to be covered over:

(2) The Council may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of the Council for the

As to construction and placing of pipes &c. between mains and meters.

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supply of gas and a copy thereof shall be kept exhibited in the office of the Council at their gasworks:

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Council's main but within the outside wall of the building:

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Council and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Council. Any officer of the Council duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Council's specification or if the meter is not placed as required by this section the Council may refuse to supply gas to the premises until the provisions of this section have been complied with:

(6) Any person to whom the Council refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Council's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Supply of
gas where
consumer has
separate
supply.

25. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Council a supply or the continuance of a supply of gas for premises having a separate supply (that is to say a supply from an installation other than that of the Council) unless he shall have previously agreed to pay the Council such

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minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889. A.D. 1911.

26.—(1) The Council may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— Power to borrow.

(a) For the purchase of land the sum of nine hundred and fifty pounds;

(b) For the extension and improvement of the gas undertaking of the Council and the construction of the weighbridge authorised by this Act the sum of four thousand seven hundred pounds;

(c) For working capital for the gas undertaking of the Council the sum of five hundred pounds;

(d) For paying the costs and expenses of this Act as hereinafter provided the sum requisite for that purpose;

and with the consent of the Local Government Board such further money as may be necessary for any of the purposes of this Act or otherwise in relation to the gas undertaking of the Council.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of their gas undertaking and the district fund and general district rate or either of such securities.

27. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned. Certain regulations of Public Health Act 1875 as to borrowing not to apply.

28. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one Mode of raising money.

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A.D. 1911: way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Periods for
repayment of
money bor-
rowed.

29. The Council shall pay off all money borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say) :—

As to money borrowed for the purpose (a) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within sixty years from the date or dates of borrowing the same :

As to money borrowed for the purposes (b) in the said section mentioned within thirty years from the date or dates of borrowing the same :

As to money borrowed for the purpose (c) in the said section mentioned within ten years from the date or dates of borrowing the same :

As to money borrowed for the purpose (d) mentioned in the said section within five years from the passing of this Act :

As to money borrowed with the consent of the Local Government Board within such period as that Board may sanction.

Mode of pay-
ment off of
money bor-
rowed.

30. The Council shall pay off all money borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Sinking
fund.

31.—(1) If the Council determine to repay by means of a sinking fund any money borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together

amount to the money for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

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(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the money for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund

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A.D. 1911. are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

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(11) Any surplus of any sinking fund remaining after the discharge of the whole of the money for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine. A.D. 1911.

32. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register. Council not to regard trusts.

33.—(1) The Council shall have power—

Power to re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

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(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 23 (Power to reborrow) of the Act of 1886 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

As to removal of existing weigh-bridge.

34. The Council shall within eighteen months after the passing of this Act take up and remove the existing weigh-bridge belonging to the Council in the main road from Marple Bridge to Glossop and shall make good the surface of the road occupied by the said weighbridge to the reasonable satisfaction of the surveyor to the Derby County Council.

Expenses of execution of Act.

35. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund.

Inquiries by Local Government Board.

36.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Authentication and service of notices &c.

37.—(1) Where any notice or demand under the Act of 1886 or this Act requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be a sufficient authentication.

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(2) Notices demands orders and other documents required A.D. 1911.
 or authorised to be served under this Act or under any local
 Act provisional order or byelaw for the time being in force
 within the district may be served in the same manner as
 notices under the Public Health Act 1875 are by section 267
 of that Act authorised to be served. Provided that in the case
 of any company any such notice demand order or document
 shall be delivered or sent by post addressed to the secretary
 of the company at their principal office or place of business.

38. Proceedings for the recovery of any demand made Recovery of
 under the authority of this Act or of the Act of 1886 or of demands
 any incorporated enactment whether provision is or is not made under one
 for the recovery in any specified court or manner may be taken hundred
 in any county court having otherwise jurisdiction in the matter pounds.
 provided that the demand does not exceed the amount recover-
 able in that court in a personal action.

39. The following sections of the Act of 1886 shall with Application
 any necessary modifications extend and apply to the exercise of provisions
 of the powers of this Act as if the same were re-enacted in this of Act of
 Act (namely):— 1886.

Section 19 Provisions as to mortgages;

Section 24 Protection of lenders from inquiry;

Section 26 Application of revenue;

Section 28 Application of money borrowed;

Section 29 Annual return to Local Government Board with
 respect to sinking fund;

Section 44 As to deficiency in receipts;

Section 47 As to penalties:

And in such extension and application the expression "the local
 board" in the Act of 1886 shall mean the Council.

40. All the costs charges and expenses of and incident to Expenses of
 and preparatory to the obtaining and passing of this Act or Act.
 otherwise in relation thereto shall when taxed and ascertained
 by the taxing officer of the House of Lords or the House of
 Commons be paid by the Council in the first instance out of
 the district fund and general district rate but ultimately if the
 Council so determine out of money borrowed under this Act.

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A.D. 1911.

The SCHEDULE referred to in the foregoing Act.

PART I.

EXISTING GAS LANDS.

Certain land at Lower Fold in the parish of Ludworth in the rural district of Glossop Dale and county of Derby on the south-western side of the road leading from Marple Bridge to Glossop and containing 2121 square yards or thereabouts upon which the existing gasworks of the Council are situate which land is now held by the Council for a term of 999 years under a lease dated the 29th day of October 1885 and made between the Right Honourable Francis Lord Howard Baron Howard of Glossop of the one part and the Marple Gas Company of the other part.

PART II.

ADDITIONAL GAS LANDS.

A piece of land belonging to the said Lord Howard in the said parish of Ludworth containing 1971 square yards or thereabouts bounded on the north-east by the main road leading from Marple Bridge to Glossop on the south-east by land and premises held on lease from the said Lord Howard by James Platt on the south-west by the existing gasworks of the Council and on the north-west by land and premises in the occupation of James Samuel Ardern Thomas William Eastaff and another.

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